

STAFF REPORT - SUMMATION

Summit Park

Preliminary Plat Process

CASE NUMBER: UDC-15-00420

SUBDIVISION CODE: SMTP-P

PREPARED BY: Brandon Cammarata

MEETING DATES: August 3, 2015 – Planning Commission
August 10, 2015 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Complete Application
- Preliminary Plat Map
- Drainage Worksheet
- Transportation Worksheet
- Environmental Impact Assessment

PLANNING COMMISSION UPDATE (8/4/15): At its' regular meeting on August 3, 2015, the motion to approve the preliminary plat with staff recommendation #1 failed by a vote of 2-4. Concerns identified by Planning Commission where traffic and concerns with the wording of the notification letter. The notification letter is not required with a preliminary plat. The Planning Commission felt the wording of "15 unit multi-family complex" did not adequately translate to the concept proposed of 60 units in 15 buildings.

From a traffic standpoint that applicant completed the required transportation worksheet which identified the proposal would be below regulatory thresholds and additional analysis was not warranted.

On August 4, 2015, the agent expressed the desire to continue to take the project to the City Council.

RECOMMENDATION: The Development Department recommends the City Council amend the Planning Commission recommendation and acknowledge the preliminary plat with staff recommendation #1.

1. Please dedicate a 20'x20' triangle of additional right-of-way on the corner of Summit & Ridge to provide additional right-of-way for future signalization and other intersection improvements.

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OWNER: Summit Park, LLC
7712 John Drive
Cheyenne, WY 82009
Not provided

AGENT: AVI
Attn: Brad Emmons
1103 Old Town Lane #101
Cheyenne, WY 82009
307.637.6017

PROJECT: Summit Park

LOCATION:

1. Legal Description: A replat of Dell Range Addition, 2nd Filing and a portion of Tract 31, Laramie County Wyoming
2. Location: southeast corner of the intersection of Ridge Road and Summit Drive (aka Storey Boulevard to the west).
3. Address: 3503 A-F Summit Drive

SIZE: Total site: 5.43 (+/-) acres

CURRENT ZONING: A-1 (County)

PROPOSED ZONING: NR-3 Neighborhood Residential - High Density

EXISTING LAND USE: Residential

PROPOSED LAND USE: Residential - Multifamily

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Residential	County A-1	County
South	Residential	County A-1/MR-2	County/City
East	Residential	County A-1	County
West	Residential	County A-1	County

EXECUTIVE SUMMARY:

This preliminary plat is for a residential subdivision at the southeast corner of Ridge Road and Summit Drive. The primary developable area is intended for multifamily development conceptually contemplating around 60 units. For the subdivision, the applicant is proposing a zoning of NR-3 High Density Residential which is supported by PlanCheyenne. Eventually, an annexation application, zone change application, and final plat application will have to come before the Governing Body for approval. A Conditional Use Approval from the Board of Adjustment is also required for Multi-family development.

The land currently includes two single family units which are intended to remain for the near term and multiple mobile homes which are planned to be removed at time of development. The proposed development is immediately north of the developing Thomas Heights Subdivision. With the Final Plat the applicant should address an approach to the traffic signal land dedication condition and clarify their approach with easements Cheyenne Light Fuel and Power may want. Staff would also want to clarify expectations related to the sanitary sewer lift station and how it should be reflected on the final plat.

Due to meeting the review criteria found in Section 2.1.2 of the Cheyenne Unified Development Code (UDC), staff recommends approval of the Summit Ridge preliminary plat, advancing it to the Governing Body with the following condition:

- 1. Please dedicate a 20'x20' triangle of additional right-of-way on the corner of Summit & Ridge to provide additional right-of-way for future signalization and other intersection improvements.**

PLAT DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed preliminary plat, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the PlanCheyenne.*

In the future land use plan, PlanCheyenne, this area has been identified as urban transitional which supports the transition of rural residential into higher densities in the City. PlanCheyenne also supports the transition utilizing existing capacity and the water and sewer system.

PLANNING - *The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.*

This project is near previous investments made by the City and Community which include North Cheyenne Community Park with primary park facilities just over ¼ mile away and the recent development of Summit Drive which was coordinated by the MPO with sidewalk curb and gutter.

The proposal accommodates joint access to existing residential units in Lots 1 and 2 also providing opportunities for redevelopment on these lots.

With the annexation the expectation is the adjacent rights of ways and intersections will be included in the annexation proposal to eliminate jurisdictional inconsistencies.

STANDARDS - *Division of land meets the purposes, intent, and all applicable standards in Article 4.*

Transportation Network:

This is a redeveloping area which has limited opportunities for a transportation network. The remaining undeveloped land in the area bounded by Summit Drive, Ridge Road and College Drive is relatively small. To the south Thomas Heights is already developing and a connection is not possible and to the east are a number of homes precluding a logical street extension to the east. The proposed preliminary plat does provide access to numerous parcels and is a reasonable approach given the constraints in the area.

Ridge Road is a Minor Arterial Street which currently does not include curb, gutter or sidewalk. Site development may require improvements to Ridge Road to current standards. Ridge Road improvements would need to be coordinated with Thomas Heights improvements to the south. Summit Drive is also a minor arterial and sidewalk curb and gutter has already been installed as a result of an MPO Surface Transportation Program – Urban (STP) project which was able to leverage federal funds to build the road in coordination with Laramie County and WYDOT.

A traffic signal may be warranted in the future. The property corner is unusually close to the street at this intersection and does not provide room for future installation of a traffic signal. The

City is requesting a 20'x20' dedication at the corner to provide for this room a traffic signal in the future.

Community Facility Fees:

Projected Park Fees:

As outlined in Section 4.2.5.c.2&3 and Table 4-1, UDC, Park fees are calculated as follows:

Total Plat Area: 5.4 acres; (less) ROW Area: 0.0 acres; (less) Dedicated Area: 0.0 acres; (equals)

Park Fee Subject Area: 5.4 acres

Total land Park fees due with the plat are \$3,780 computed at a rate of \$700 per acre. Additional fees will be due at time of permit at a rate of \$400 per dwelling unit or \$1,100 per acre for commercial development.

Open Space:

This is near North Cheyenne Community Park and any required open space would be addressed through the site plan process. The concept plan has identified some open space area.

PHASING - *Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.*

There is no phasing planned with this development. Lot three is anticipated for multifamily development and Lots 1 and 2 are intended to remain as the existing residential uses although these parcels could redevelop in the future.

STUDIES - *The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.*

With this preliminary plat, the required drainage and transportation worksheets were submitted. The Engineering Department found these worksheets to be satisfactory at this stage in the development.

ZONING - *All proposed lots shall be buildable lots according to the existing or proposed zoning district standards, and result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district. All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance.*

The Multifamily lots total 4.18 acres which would allow the 60 units currently contemplated. The maximum density is 1 unit per 2000 square feet of property area for the complex. The proposed

multifamily complex would require a conditional use approval. Setbacks and coverage for the complex are described in Lot Type MD1 for the multifamily complex as a whole. Design standards described in Article 6 are required as applicable and reviewed via administrative site plan approval.

Lot 16 is identified as a proposed location for a sanitary sewer lift station which is substantially an underground facility with a box above ground, similar to a CLFP utility box, which would be about 5-feet tall and 8 feet x 8 feet. A lot is not required for such a facility and could be accommodated with easements. The location should be one that minimizes impacts to the site. Staff will coordinate with the BOPU and the applicant regarding approaches to this utility feature prior to final plat submittal.

The existing single family residences on Lots 1 and 2 are allowable in the proposed zone district and would not require any modifications other than connecting to sanitary sewer when annexed.

SURROUNDING DEVELOPMENT - *The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.*

This is an area currently developed with a hodgepodge of rural residential development in the County. PlanCheyenne supports the transition of this area to urban development taking advantage of nearby infrastructure and logical provision of services. Typically residential uses are compatible with other surrounding residential uses. Higher intensity residential uses such as multifamily are supported by direct access to a major thoroughfare which is available in Summit Drive with access in to the City via Storey Boulevard and Ridge Road. Proximity to north Cheyenne Community Park is also considered an asset to higher density residential development.

With this project the applicant identified they sent mailed notice to 21 surrounding landowners as well as signed notice on the property.

REVIEWERS w/ COMMENTS:

- Board of Public Utilities (Linda Gunter) On this Preliminary Plat, if any of the easement are going to be designated for BOPU's water and sewer mains. The Utility easement must read BOPU Utility Easement. Any lot that will used for a Sewer Lift or Water Pump Station the must be 50' by 50' in size.

There is no water or sewer available to serve this development. Owner/developer is responsible for verifying the remaining available sewer capacity of the existing sewer system in the area to serve this project. The developer will be required to construct a looped water main to serve this development. The property Owner/developer shall be required to extend the water and sanitary sewer utilities from their current location to the farthest point (or points) of the property being developed. These utility extensions shall be to a point (or points) that are logical for projected future connections to future development projects, as determined by the BOPU and the property owner/developer.

The BOPU needs to approve all water and sewer main design layout. All water and sanitary sewer utilities has to be designed and constructed in accordance with the latest City of Cheyenne and Board of Public Utilities Construction Specifications Standards and Standard Drawings and the latest Rules & Regulations for Establishing Policies & Design Criteria of the Board of Public Utilities Cheyenne, Wyoming.

- Cheyenne Light, Fuel & Power (Jack Whyatt) Request 8 ft front lot easement and 10 ft rear lot easements to allow for electric and gas distribution and services.
- Engineering Department
 - o (Nathan Beauheim) Please dedicate a 20'x20' triangle of additional right-of-way on the corner of Summit & Ridge to provide additional right-of-way for future signalization and other intersection improvements.
 - o (Jack Studley) 1. Boundary data and legal descriptions appear in order.
2. In the fourth NOTE, I believe that it should reference Lot 7, not Lot 17. This correction is required.

- Laramie County Assessor (Clarice Blanton) We are currently assessing: Summit Park LLC for the North 1/2 of Tract 31. James W. Inman Jr. and Christine F. Inman for A POR OF TRACT 31 DESC AS: BEG AT A PNT ON THE EAST LINE OF SD TRACT 31, 236' NORTH OF THE SOUTHEAST COR OF SD TRACT; TH WEST PARALLEL TO THE SOUTH LINE OF SD TRACT, 125'; TH NORTH, PARALLEL TO THE EAST LINE OF SD TRACT, 58.79', TO THE EAST-WEST CENTERLINE OF SD TRACT; TH EAST ALONG SD CENTER LINE, 125' ; TH SOUTH ALONG SD EAST LINE, 58.79' TO THE POB. and A PARCEL OF LAND IN TRACT 31 DESCRIBED AS: BEG AT A PNT ON THE EAST LINE OF SD TRACT 31, A DIST OF 118' NORTH OF THE SOUTHEAST COR OF SD TR 31, TH NORTH, ALONG THE EAST LINE OF SD TR 31, A DIST OF 118' TO A PNT; TH N 89 DEG 29' W, PARALLEL TO THE SOUTH LINE OF SD TR 31, A DIST OF 125' TO A PNT; TH SOUTH PARALLEL TO THE EAST LINE OF SD TRACT 31, A DIST OF 118' TO A PNT; TH S 89 DEG 29' E, PARALLEL TO THE SOUTH LINE OF SD TR 31, A DIST OF 125' TO THE PNT OF BEG.

Northwest Bank of Cheyenne NA is being assessed for: DELL RANGE ADDITION, 2ND FILING: THE EAST 60' OF THE WEST 495' OF THE SOUTH 1/2 OF TRACT 31 LESS THE SOUTH 118' THEREOF. And August Palmer and Patty Palmer assessed for: PARCEL OF LAND IN TRACT 31, DESC AS: BEG AT THE SOUTHEAST COR OF TRACT 31; TH NORTH ALONG THE EAST LINE OF TRACT 31, 118'; TH N 89 DEG 29' W, PARALLEL TO THE SOUTH LINE OF TRACT 31, 125'; TH SOUTH, PARALLEL TO THE EAST LINE OF TRACT 31, 118' TO A PNT ON THE SOUTH LINE OF TRACT 31, TH S 89 DEG 29' E, ALONG SD SOUTH LINE 125' TO THE PNT OF BEG. PLUS THE SOUTH 118' OF THE EAST 60' OF THE WEST 495' OF THE SOUTH 1/2 OF TRACT 31.

Will Lot 7 be owned as an undivided interest among Lots 3-6 and 8-19?

As not all of Tract 31 is being re-platted the area which is should be spelled out in the title block i.e. The North 1/2 and the East 184.81' of the South 1/2.

- Environmental Health Department (Roy Kroeger) This property has had small wastewater systems that are not working properly. Soil conditions are not good for small wastewater systems. This office encourages any development utilizing the public sewer system.
- Fire Department (Jim Schamerhorn) Provide fire hydrants in number and placement compliant pursuant to the 2012 Edition of the International Fire Code Appendix "C".
- LCSD #1 (Chris Hout) The plat falls within the "East Triad". Home schools for this location are East High School, Carey Jr High School and Anderson Elementary Schools.

Currently, enrollment for these schools are as follows:

East High -- Near capacity -- limited space available.

Carey Jr High - below capacity - space available both grades.

Anderson Elementary -- space available most grades. (note that Meadowlark Elementary school is now under construction, this school will house 5th and 6th grade students. Anderson is anticipated to be one of the elementary school boundaries that will be included in the Meadowlark 5/6 boundary -- school is scheduled to open in August of 2016)

- Metro Planning Office (Nancy Olson) This project triggers the need to install sidewalk on Ridge to the extent of the property boundaries. Ridge is a minor arterial and should follow the guidelines of Article 4 of the Unified Development Code for an 8' ft. tree lawn and and a 6' sidewalk at a minimum. The plat maps shows an 8' sidewalk and this is acceptable as it could then be used as a multiuse path.

REVIEWERS w/o COMMENTS:

- Charter (Kurt Quinlivan)
- Development Department (Josh Tetzlaff)
- Engineering Department (Michael Vinson)
- GIS/Engineering/Addressing (Gary Stogsdill)
- Parks and Recreation Admin (Teresa Moore)
- Urban Planning Division (Matt Ashby)

REVIEWERS NOT RESPONDING:

- Building Division (Amanda Barto)
- CenturyLink (Bob Bates)
- Laramie County Attorney (Mark Voss)
- Laramie County Clerk (Vicki Swanson)
- High West Energy (Lloyd Sisson)
- Suncor Pipeline (Megan Romano)

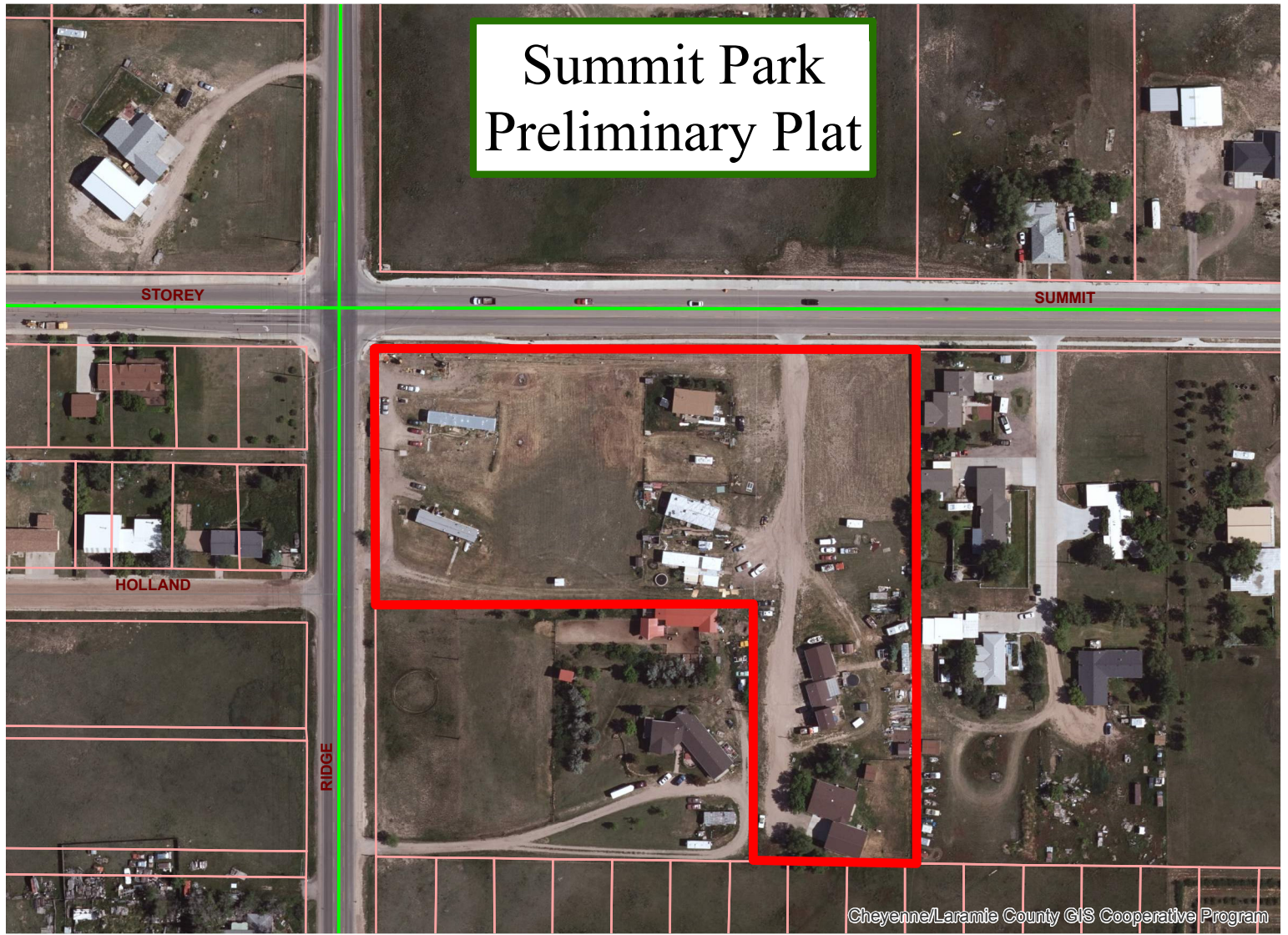
OTHER COMMENTS RECEIVED:

- None

Encl: Preliminary Plat Map
Aerial Map

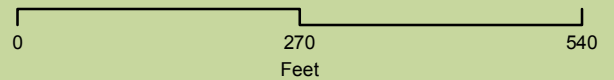
cc: Owner
Agent/Applicant
File

Summit Park Preliminary Plat

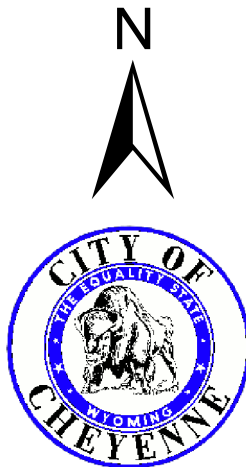
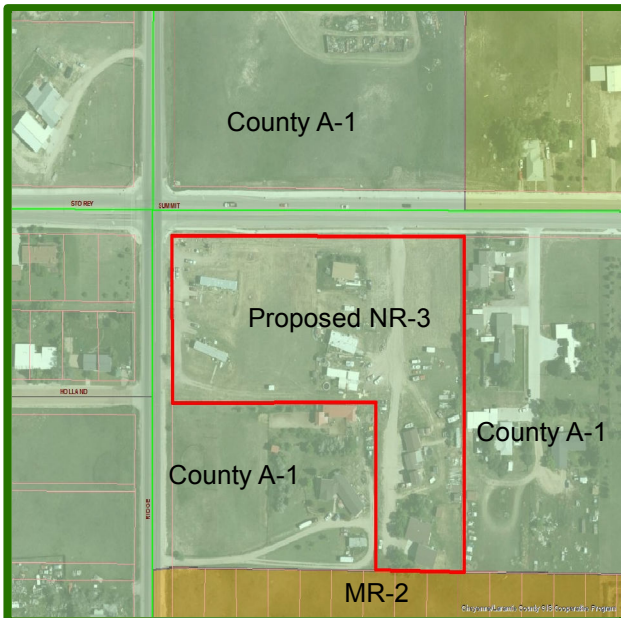


Applicant: Summit Park, LLC
Agent: Brad Emmons, A.V.I., P.C

Application Numbers
Preliminary Plat: UDC-15-00420



Zone Districts

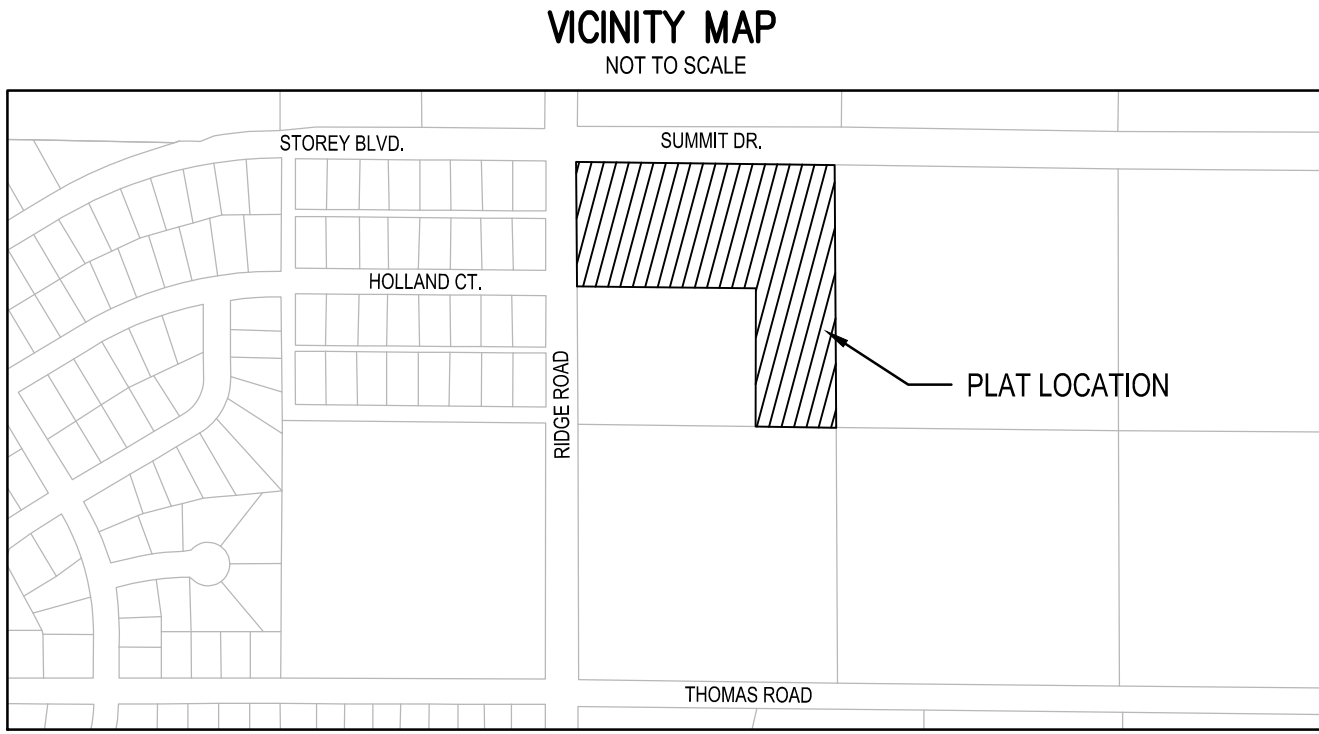
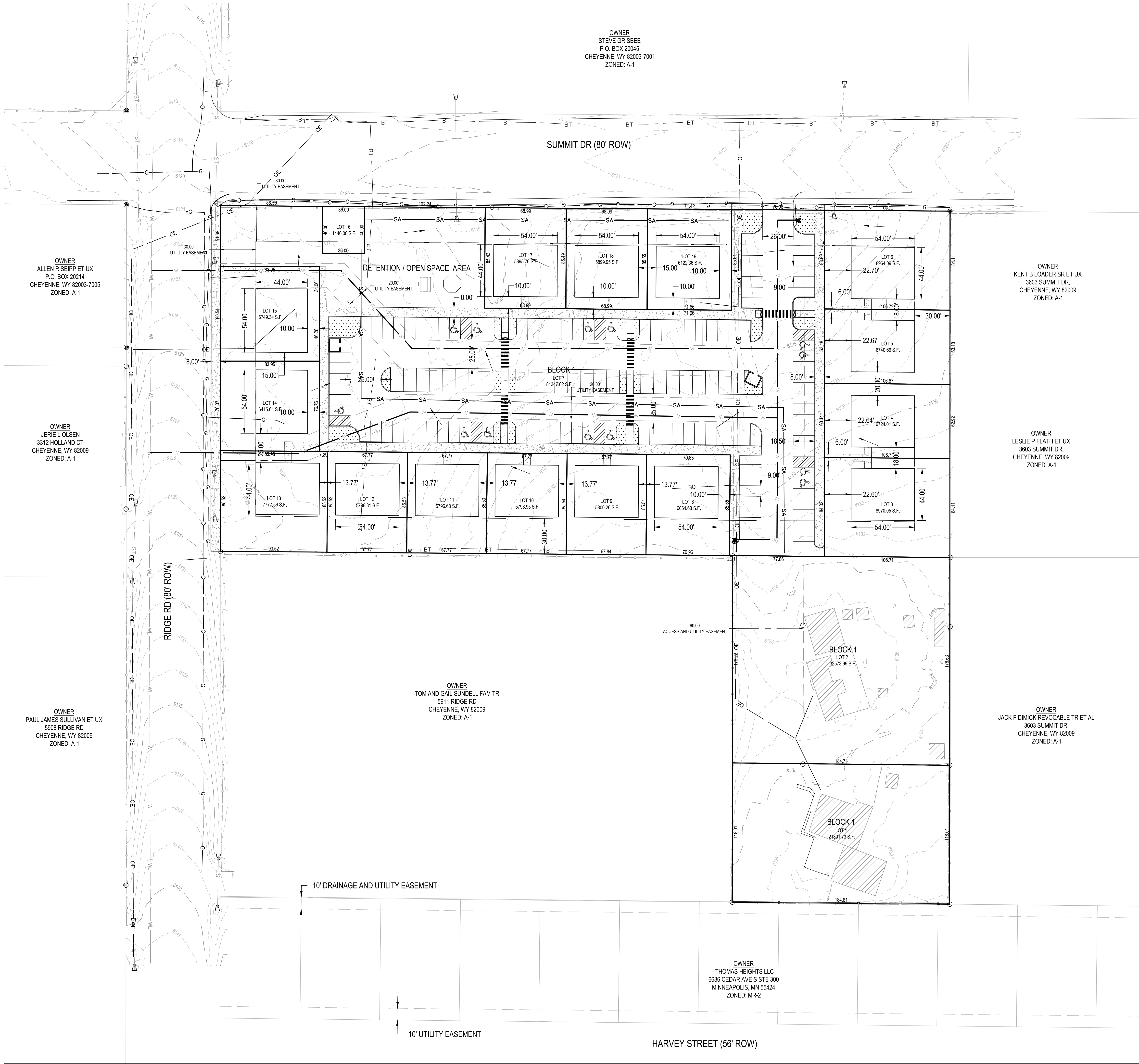


This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Annexation



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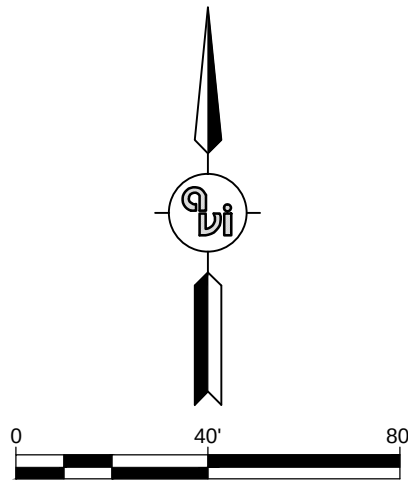
- LEGEND
- FOUND ALUMINUM CAP
 - FOUND IRON ROD
 - ⊙ FOUND IRON PIPE
 - - - MAJOR CONTOURS
 - - - MINOR CONTOURS
 - - - LOT LINES
 - - - OE EXISTING OVERHEAD ELECTRIC
 - - - BT EXISTING BURIED TELEPHONE
 - - - G EXISTING GAS
 - DRAINAGE ARROWS

ZONING:

- THE PROPOSED DEVELOPMENT IS CURRENTLY ZONED A-1
- THE PROPOSED ZONING IS NR-3

NOTES:

- SUBDIVISION CONTAINS 5.43 ACRES ±
- TOTAL LOTS = 19 (TOTAL RESIDENTIAL LOTS = 17)
- TOPOGRAPHY IS FROM CITY OF CHEYENNE AVAILABLE CONTOURS. VERTICAL DATUM IS NGVD 29.
- LOT 17, BLOCK 1 IS FOR STORMWATER DETENTION FACILITIES, PARKING AND OPEN SPACE AREA. OPEN SPACE WILL BE FINALIZED WITH FINAL PLAT.
- ACCORDING TO THE LARAMIE COUNTY INTERACTIVE FLOODPLAIN MAP, THE FEMA FLOODPLAIN IS NOT APPLICABLE TO THE PLATTED AREA.
- 4- PLEXES = 15 (60 UNITS)
- 2 EXISTING RESIDENCES TO REMAIN



PRELIMINARY PLAT
FOR
SUMMIT PARK

A REPLAT OF A PORTION OF DELL RANGE ADDITION SECOND
FILING TRACT 31, BEING SITUATED IN A PORTION OF THE
WEST ½ SECTION 22, T14N, R66W, OF THE 6TH PRINCIPAL
MERIDIAN,
CHEYENNE, WYOMING
PREPARED JUNE 2015

NO.	REVISION	DATE

PREPARED FOR:
DAN HOLBROOK
7712 JOHN DRIVE
CHEYENNE, WY 82009

PROJECT:
SUMMIT PARK

DRAWING TITLE:
PRELIMINARY PLAT

 **ENGINEERING
PLANNING
SURVEYING**

307.637.6017
1103 OLD TOWN LANE, SUITE 101
CHEYENNE, WY 82009
AVI@AVIPC.COM

DATE:
JUNE 2015

DRAWN BY:
CC

DESIGNED BY:

CHECKED BY:
AED

JOB NO.:
3790

DRAWING NO. 1 OF 1